

23SMCV01239 23SMCV01239

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-08-24

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Case Number: 23SMCV01239 Hearing Date: August 24, 2026 Dept: I

The matter is here for an FSC. The FSC was supposed to take place in December 2024, but the parties sought a continuance and filed no FSC materials. The court sanctioned the parties but was forced to continue the trial.

On August 19, 2026, plaintiff filed unilateral FSC materials. Plaintiff also waived jury. Plaintiff contends that defendants never posted their fees. The court is inclined

to accept plaintiff's waiver, and the case will now be a bench trial. Plaintiff's unilateral submissions encompass all of the required documents, although they are unilateral, not joint. Plaintiff's counsel states that plaintiff tried to start the FSC process last June, but defendants, who now have no lawyer, have gone radio silent. As to SCC General, it cannot appear without counsel.

As to the individuals, they can appear and represent themselves, but they still have filed no FSC materials.

As the court warned the parties at the Case Management Conference, if one party attempts to comply with the court's order and the other does not, the party not complying could be subject to evidentiary sanctions. That is the case here. Accordingly, defendants are precluded from

submitting a witness or exhibit list.

Defendants may cross examine any witness called by plaintiff within the scope of the direct, however. Defendants may also call themselves as witnesses.

Defendants may not introduce any documents into evidence, but they may rely on any exhibit actually introduced by plaintiff. With that limit, the case is READY FOR TRIAL. However, because it now looks like a short

bench trial, the trial will go forward on Friday, September 4, 2026, at 10:30 am. The court believes it ought to be completed that day, but if not, the court will set a second day of trial.

The court notes the settlement with Altece and will sign the

proposed order.